

HOUSE BILL No. 1293

DIGEST OF INTRODUCED BILL

Citations Affected: IC 9-13-2-197.7; IC 9-30-4-6.1.

Synopsis: Vulnerable road users. Requires the bureau of motor vehicles to suspend or revoke the current driver's license or driving privileges of an individual who is convicted of a moving traffic offense that causes the death of a vulnerable road user.

Effective: July 1, 2026.

Johnson B

January 6, 2026, read first time and referred to Committee on Roads and Transportation.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1293

A BILL FOR AN ACT to amend the Indiana Code concerning motor vehicles.

Be it enacted by the General Assembly of the State of Indiana:

SECTION 1. IC 9-13-2-197.7 IS ADDED TO THE INDIANA CODE AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 197.7. "Vulnerable road user"** refers to any of the following:

(1) A first responder.

(2) An individual engaged in road work along a highway or street.

(3) An individual operating a farm tractor, farm wagon, or farm implement on a highway or street.

(4) A tow truck operator or stationary recovery vehicle operator.

(5) A pedestrian.

(6) An individual lawfully operating a bicycle or Class 1, Class 2, or Class 3 electric bicycle on a highway or street.

SECTION 2. IC 9-30-4-6.1, AS AMENDED BY P.L.141-2024, SECTION 44, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 6.1. (a) The bureau shall suspend or revoke the



current driver's license or driving privileges of an individual who is convicted of any of the following:

(1) Manslaughter or reckless homicide resulting from the operation of a motor vehicle.

(2) Knowingly making a false application, or committing perjury with respect to an application made, under:

(A) this chapter; or

(B) any other law requiring the registration of motor vehicles or regulating motor vehicle operation on highways.

(3) Three (3) charges of criminal recklessness involving the use of a motor vehicle within the preceding twelve (12) months.

(4) Failure to stop and give information or assistance or failure to stop and disclose the individual's identity at the scene of an accident that has resulted in death, personal injury, or property damage in excess of two hundred dollars (\$200).

(5) A moving traffic offense that causes the death of a vulnerable road user, except for an offense under IC 9-30-5.

(b) The bureau shall suspend a driver's license or driving privileges of an individual upon conviction in another jurisdiction for the following:

(1) Manslaughter or reckless homicide resulting from the operation of a motor vehicle.

(2) Knowingly making a false application, or committing perjury with respect to an application made, under:

(A) this chapter; or

(B) any other law requiring the registration of motor vehicles or regulating motor vehicle operation on highways.

(3) Three (3) charges of criminal recklessness involving the use of a motor vehicle within the preceding twelve (12) months.

(4) Failure to stop and give information or assistance or failure to stop and disclose the individual's identity at the scene of an accident that has resulted in death, personal injury, or property damage in excess of two hundred dollars (\$200).

However, if property damage under subdivision (4) is equal to or less than two hundred dollars (\$200), the bureau may determine whether the driver's license or driving privileges shall be suspended or revoked.

(c) An individual whose driving privileges are suspended under this chapter is eligible for specialized driving privileges under IC 9-30-16.

(d) A suspension or revocation remains in effect and a new or renewal license may not be issued to the individual as follows:

(1) Except as provided in subdivision (2), for six (6) months after the date of conviction or on the date on which the individual is



1 otherwise eligible for a license, whichever is later.

2 (2) Upon conviction of an offense described in subsection (a)(1),
3 (a)(4), **(a)(5)**, (b)(1), or (b)(4), when the accident has resulted in
4 death, for a fixed period of at least two (2) years and not more
5 than five (5) years, to be fixed by the bureau based upon
6 recommendation of the court entering a conviction. A new or
7 reinstated driver's license or driving privileges may not be issued
8 to the individual unless that individual, within the three (3) years
9 following the expiration of the suspension or revocation, gives
10 and maintains in force at all times during the effective period of
11 a new or reinstated license proof of financial responsibility in the
12 future in the manner specified in this chapter. However, the
13 liability of the insurance carrier under a motor vehicle liability
14 policy that is furnished for proof of financial responsibility in the
15 future as set out in this chapter becomes absolute whenever loss
16 or damage covered by the policy occurs, and the satisfaction by
17 the insured of a final judgment for loss or damage is not a
18 condition precedent to the right or obligation of the carrier to
19 make payment on account of loss or damage, but the insurance
20 carrier has the right to settle a claim covered by the policy. If the
21 settlement is made in good faith, the amount must be deducted
22 from the limits of liability specified in the policy. A policy may
23 not be canceled or annulled with respect to a loss or damage by an
24 agreement between the carrier and the insured after the insured
25 has become responsible for the loss or damage, and a cancellation
26 or annulment is void. The policy may provide that the insured or
27 any other person covered by the policy shall reimburse the
28 insurance carrier for payment made on account of any loss or
29 damage claim or suit involving a breach of the terms, provisions,
30 or conditions of the policy. If the policy provides for limits that
31 exceed the limits specified in this chapter, the insurance carrier
32 may plead against any plaintiff, with respect to the amount of the
33 excess limits of liability, any defenses that the carrier may be
34 entitled to plead against the insured. The policy may further
35 provide for prorating of the insurance with other applicable valid
36 and collectible insurance. An action does not lie against the
37 insurance carrier by or on behalf of any claimant under the policy
38 until a final judgment has been obtained after actual trial by or on
39 behalf of any claimant under the policy.

40 (e) The bureau may take action as required in this section upon
41 receiving satisfactory evidence of a conviction of an individual in
42 another state.



1 (f) A suspension or revocation under this section or IC 9-30-13-0.5
2 stands pending appeal of the conviction to a higher court and may be
3 set aside or modified only upon the receipt by the bureau of the
4 certificate of the court reversing or modifying the judgment that the
5 cause has been reversed or modified. However, if the suspension or
6 revocation follows a conviction in a court of no record in Indiana, the
7 suspension or revocation is stayed pending appeal of the conviction to
8 a court of record.

9 (g) A person aggrieved by an order or act of the bureau under this
10 section or IC 9-30-13-0.5 may file a petition for a court review.

11 (h) An entry in the driving record of a defendant stating that notice
12 of suspension or revocation was mailed by the bureau, or sent
13 electronically if the defendant has indicated a preference for receiving
14 notices from the bureau electronically, to the defendant constitutes
15 prima facie evidence that the notice was mailed to the defendant's
16 address as shown in the records of the bureau.

